

I. Request

1. His Excellency the Secretary of State for National Defense requested the National Data Protection Commission (CNPd) to issue an Opinion on the compliance with the rules regarding the security of data processing in the request for authorization for the use of portable individual cameras by the Maritime Police.
2. The CNPD issues this opinion within the scope of its powers and responsibilities, as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of number 1 of article 57, paragraph b) of number 3 of article 58, and number 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, number 2 of article 4, and paragraph a) of number 1 of article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. LEGAL FRAMEWORK

3. This opinion specifically addresses the use of portable individual cameras (commonly known as bodycams) by the Maritime Police, following the acquisition of 112 "Coercive Kits," which include portable individual cameras, as provided for in articles 10 of Law No. 95/2021, of December 29, and article 3 of Decree-Law No. 2/2023, of January 2.
4. The use of portable individual cameras by police forces currently finds specific support in the Portuguese legal framework, namely in Law No. 95/2021 and Decree-Law No. 2/2023, and the definitional list contained in article 3 of Law No. 59/2019, of August 8, is also applicable.
5. In fact, although the use of such video surveillance systems may raise various problematic dimensions that are not always easily addressed regarding the protection of personal data, the foundational legal regime for their use and, consequently, the data processing operations to which they refer, would essentially be outlined by those diplomas. This Commission has, in previously issued opinions during the respective legislative projects, made a series of observations reflecting those dimensions, even fundamental rights - and in the contextual and material assessment of the legislative contents and intentions on this particular matter - to which reference is now made, which will constitute valuable hermeneutic subsidies for the interpretation of those diplomas from the perspective of personal data protection.
6. Primarily, this Commission must emphasize that the matter of personal data shares the legal dimension of fundamental rights, thus being part of that common core of rights and freedoms upon which the existence of a democratic society is based, with the consequences that such dignity demands.
7. Therefore, the protection of personal data is directly provided for in the Charter of Fundamental Rights of the European Union, and its processing must comply with the principles and foundational ideas widely recognized in European and national legislation that disseminate that identity, and which seek to confirm and promote the idea of human rights that underlies it, as one of its manifestations.
8. As a fundamental legal matter, the protection of personal data also enjoys the enshrinement of a set of specific principles, which emerge in dependence on the axiological core of that essential nucleus, in the sense of confirming their effectiveness.
9. Thus, in this regard, the principles that shape this matter emerge, in addition to those of legality, fairness, and transparency, and those of accuracy, integrity, and confidentiality, the principles of necessity, relevance, and adequacy to the specific purposes that justify the processing, and, together, the minimization of the data to be processed, in at least two aspects: the quantity and type of data processed, and the extent of the processing to be carried out, with an emphasis on limiting their retention.
10. It is, therefore, in this greater light that all data processing must be considered, and likewise evaluated, which will also serve the observations that will be made below.
11. For brevity's sake, any processing of personal data, given the nature described, may only occur when there is a lawful basis that authorizes it.

Cfr. the Opinions 143/2021 and 101/2022.

See its article 8.

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See, in general, article 5 of the GDPR.

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Cfr. the exhaustive list contained in article 6 of the GDPR.

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Data must be processed in a manner that ensures its security, including against unauthorized or unlawful processing, and against accidental loss, destruction, or damage.

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This is, thus, a judgment of proportionality.

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12. In Article 8 of the Charter of Fundamental Rights, it is stated that personal data "must be processed fairly, for specific purposes"⁸, and that such data cannot be processed subsequently in a manner incompatible with those purposes⁹. In other words, the data controller may only collect data for determined, explicit, and legitimate purposes, and once collected, may not use it for purposes that are not compatible with those.

13. The purposes of processing thus serve as a cornerstone for the processing of personal data – the determination of purpose constitutes a primary step in the processing of personal data, as it not only justifies and authorizes it but also co-determines the fulfillment of other principles and aspects to be executed in the processing, as broad as the categories of data to be considered, up to its retention or the technical and security measures to be ensured.

14. Furthermore, the purposes play a predominant role in the proportionality assessment in which each of these fundamental legal judgments must be based, in a broad assessment of legality, to be evaluated concretely.

15. It is for this reason that the Legislator, through Law No. 95/2021, regulated the use and access to video surveillance systems by security forces and services and by the National Authority for Emergency and Civil Protection, specifying, in its Article 3, that such systems may only be used for the purposes of: a) Protection of public buildings and infrastructures and their access; b) Protection of critical infrastructures, sensitive points, or facilities of interest for defense and security and their access; c) Support for the operational activity of security forces and services in complex police operations, namely in large-scale events or other high-risk or threat operations; d) Protection of the safety of people, animals, and property in public or publicly accessible places, and the prevention of acts classified by Law No. as crimes, in places where there is a reasonable risk of their occurrence; e) Prevention of terrorist acts; f) Operational response to ongoing security incidents; g) Traffic control and safety of people, animals, and property in road circulation; h) Prevention and repression of road offenses; i) Control of the movement of people at external borders; j) Forest protection and detection of rural fires; k) Support in external search and rescue operations and, additionally, in police facilities for public service.

16. Also in that Law No. (Article 10), the essential regime regarding the use of this type of cameras was provided, referring, however, to that Decree-Law for matters concerning "The characteristics and standards for placement, activation, signaling, and use of the cameras [...], and the manner of transmission, storage, and access to the collected data."

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Emphasis added.

See Article 5(1)(b) of the GDPR.

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17. The aforementioned Decree-Law No. 2/2023 thus defines “[...] the standards for placement, activation, signaling, and use of portable individual-use cameras [...]”, “[...] as well as the manner of transmission, storage, and access to the collected data and the characteristics and minimum technical requirements of the CPUI.”

18. This diploma, inserted in the presumed material regulatory sphere of Law No. mentioned, must be considered together with it, from which it follows that the use of portable individual-use cameras by police agents may only occur when the purposes provided for in Article 3 of Law No. 95/2021 are verified, which, as a necessary and authorizing condition for the processing of the data in question, must previously find subsumption there, which is not indicated in the request for an opinion, nor in the documents that support it.

19. In fact, since the diploma is applicable to all police forces, some of the purposes therein are not even susceptible to articulation with the legal competencies assigned to the PM10.

20. Even though in Annex B of its supporting documents under the title “Standards Aimed at Ensuring the Correct Use of Recorded Data” it is stated that “The use of bodycams for recording police interventions is only permitted when: a. The commission of a criminal offense occurs; b. Current and unlawful aggression directed against the police officer or against third parties; c. Disobedience and resistance to legal and legitimate orders of a police officer in the exercise of police functions; d. A situation of danger or emergency or in an operation involving risk to the police officer or to third parties; e. Action to capture or prevent the escape of a person suspected of committing a crime punishable by imprisonment; f. An operation aimed at arresting a person who has escaped or is subject to an arrest warrant or to prevent the escape of a regularly arrested or detained person; g. A situation of public order disturbance.

21. And, furthermore, that “The use of bodycams for recording police interventions is mandatory when: a. The use of public force against any citizen occurs, namely when physical restraint or handcuffing is applied; b. The use of any coercive means or police weapons, especially firearms; c. The issuance of orders to suspects regarding the cessation of illegal or aggressive behaviors and the adoption of security positions.”,

22. the excerpts just cited result from the transcription of numbers 4 and 5 of Article 7 of Decree-Law No. 2/2023, under the heading “Recording”, where the permissibility and obligation of recording police interventions (and their modus) is specified, which, as previously stated, must always presuppose the genetic inclusion in the purposes provided for in Article 3 of Law No. 95/2021, thus situating itself on different planes.

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Even though, it should be noted, given the nature of the OPC of the PM, others surely will be.

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23. The criteria regarding recordings do not correspond to the purposes that substantiate and justify the authorized use of these systems, serving, in the abstract, for subsumption to any of those items in paragraph 1 of the aforementioned article 3, or to all, whether by the PM or other Criminal Police Bodies.

24. In conclusion, what should be understood as purposes or objectives, for these effects, shall be regarded as the specific uses intended by the PM in resorting to these systems, in the exercise and scope of its competencies, assignments, and tasks of OPC, to be carried out in a specific judgment, and that finds accommodation in the purposes that allow the use of these systems, and that permit their invocation. Although it appears as a broad representation, the content of the purposes provided in the aforementioned article 3 is not unrestricted.

25. In reinforcement, right in the subsequent article of Law No. (4), emphasizing the same importance, the Legislator declares that 1 - The use of video cameras is governed by the principle of proportionality. 2 - The use of video cameras is authorized when such means prove adequate for the purposes provided in the previous article, taking into account the specific circumstances of the location to be protected. 3 - In the case-by-case consideration of the specific purpose for which the video surveillance system is intended, the possibility and degree of impact on personal rights resulting from

the use of video cameras must be considered. 4 - The installation and use of fixed or portable cameras in areas that, although located in public places, are, by their nature, intended to be used in privacy, are prohibited. 5 - The use of video cameras is prohibited when the capture of images and sounds encompasses the interior of a home or inhabited building or its dependency, or of hotel establishments and similar, except with the consent of the owners and those who legitimately inhabit it, or judicial authorization. 6 - The capture of images and sounds is also prohibited when such capture directly and immediately affects the sphere of the reserve of intimate and private life. 7 - Images and sounds accidentally obtained, in violation of the provisions of paragraphs 5 and 6, must be immediately destroyed by the person responsible for the system. “[underlined by us].

26. And, although article 10 of the same Law No. specifically refers to the use of portable individual-use cameras, it will not deviate from the general regime in which it is included, since, in addition to referring to Decree-Law No. 2/2023, it only states that “[...] 3 - Portable individual-use cameras must be placed visibly on the uniform or equipment, being equipped with signage indicating their purpose. 4 - The capture and recording of images and sounds may only occur in the event of intervention by a member of the security forces, namely when a criminal offense, a situation of danger, an emergency, or a disturbance of public order is at stake, and the start of recording must be preceded by a clearly perceptible warning, whenever the nature of the service and the circumstances allow it. 5 - The capture and recording of images is mandatory when the use of public force against any citizen occurs or the use of any coercive means, especially firearms. 6 - Permanent or indiscriminate recording of facts that do not have evidentiary relevance is prohibited, and in all circumstances, the dignity of citizens must be respected, and personal rights preserved, namely the right to image and speech. 7 - The recorded data are stored in the system, in an encrypted file that ensures its inviolability, and cannot be deleted or altered by the agent who performed the recording. 8 - The characteristics and standards for placement, activation, signaling, and use of the cameras referred to in paragraph 1, and the manner of transmission, storage, and access to the collected data, are subject to Decree-Law.”

27. It is also significant, it is believed, the legislative expression contained in article 16 of Law No., under the heading “Collection and processing of data,” when it states that “1 - For the purposes provided in article 3, the processing of data may have an underlying analytical management system of the captured data, through the application of technical criteria, in accordance with the purposes for which the systems are intended.”

28. In conclusion, the use of bodycams by the PM should be concretely defined, namely considering the purposes provided in article 3 of Law No. 95/2021.

29. That said, as was provoked at the beginning of this opinion, it is also important for the assessment of the broad legality of data processing how this is executed and operationalized, not being a subsidiary or secondary matter of the respective treatments, to the extent that such aspects, in the execution of processing, constitute the ontic irradiation of the judgments and rights in action, leading them to practice.

30. Furthermore, neither in the request nor in the annexes, is there...

****expressa se existirá gestão analítica de dados e, a****

****existir,****

****se esta é efetuada por alarmística baseada em****

****algoritmos pré-definidos ou baseada em inteligência****

****artificial (IA) generativa. Sem estes elementos a CNPD não pode****

****aferrir o potencial discriminatório deste tratamento****

****de dados pessoais.****

31. It should be noted that the new Regulation (EU) 2024/1689 of the European Parliament and of the Council, dated June 13, 2024, (hereinafter referred to as the Regulation) which establishes harmonized rules regarding artificial intelligence, has been in effect since August 1, 2024, and requires that in order for the set of binding norms applicable to AI systems to be proportionate and effective, a clearly defined risk-based approach must be followed.

32. Moreover, the use of AI in this context, considering the role of law enforcement authorities and the awareness that their actions are characterized by a substantial degree of power imbalance and may lead to surveillance, detention, or deprivation of liberty of an individual, as well as having other negative repercussions on fundamental rights, especially if the appropriate requirements regarding performance, accuracy, or robustness are not met, or if it has not been properly designed and tested before being placed on the market or in service, can be highly discriminatory.

33. Furthermore, the exercise of important procedural fundamental rights, such as the right to action and to an impartial court, the right to defense, and the presumption of innocence, may be compromised, particularly if these AI systems are not reliable, transparent, and documented. For this reason, the Regulation classifies the use of AI by security forces as high-risk (cf. paragraph 6 of Annex III of the Regulation).

****III. OF THE SPECIFIC USE OF INDIVIDUAL PORTABLE CAMERA SYSTEMS BY THE MARITIME POLICE.****

34. The Maritime Police intends to implement a video surveillance system through the use of individual portable cameras, more specifically, with the equipment listed in Annex A and with the operational rules outlined in Annex B attached to the request for opinion.

35. From the documents included in the request, it appears that the operational use rules for the bodycams (Annex B) generally correspond to the specific dictates of the legislator for their correct use, as provided in Decree-Law No. 2/2023, particularly regarding the mode of carrying, permission and/or obligation and prohibition of recording, the need for verbal announcement of use, and the duty of reporting and communication.

36. As for the cameras acquired and intended for this use, it should be deemed that these must be pre-configured before being put into use by the operators, with no possibility for them to alter these configurations on the devices, in order to adapt them, at all times, to the legal regime that governs this use, as will be better explained below.

37. Both Article 10, paragraph 7 of Law No. 95/2021 and Article 12 of Decree-Law No. 2/2023 emphasize that the police officer who executed the recording may not delete or alter it, and the integrity of the processed data must be permanently respected, with the collected data only being able to occur in strict compliance with the established rules that authorize them.

38. It is also important to mention that the existence of audit logs is, in the case under analysis, essential, and that, in order for its integrity to be unquestionable, they must be digitally signed.

39. From the information received, it is concluded that the cameras are of the Axon Body 3 model, from the manufacturer Axon Enterprise, Inc., a U.S. company based in the state of Arizona.

40. Reviewing the technical characteristics of these devices, it is noted that they are capable of simultaneous recording of image and sound, without the need for handling by the operator, and have the following characteristics: recording in Full HD; battery that supports 14 hours of operation; 64GB of storage; AES-XTS 128-bit encryption; configurable pre-event buffer of up to 120 seconds.

41. These cameras are also capable of interacting with other devices from the same manufacturer, namely Tasers, with the recording being able to be activated by the triggering of those devices.

42. The review of the technical specifications of the camera on the manufacturer's website also leads to the conclusion that encryption on the cameras is active for the content of the disk where images and sound are recorded, a requirement that, it should be emphasized, must be met under any circumstances, not only in the use of image and sound collection but also in the process of transferring the captured and stored data, as provided in Articles 11, paragraph 5, and 16, paragraph 2, item k) of Decree-Law No. 2/2023 and Article 10, paragraph 7 of Law No. 95/2021.

43. Before they can be used by the operators, the cameras must be registered.

44. The registration may, depending on the characteristics of the devices, be done in two ways:

through an Axon Device Manager (ADM) app installed on a smartphone, or through the View XL Standalone application installed on a Windows computer.

45. In the case of registration being done through the ADM, the camera must be docked to a docking station (Axon Dock). These stations are connected to the network and must have access to the Axon Evidence server (described below). When docked to these docking stations, the cameras charge the battery, receive system updates, synchronize the internal clock, and download the... films that are recorded on the internal disk for the Axon Evidence server, deleting them afterwards with confirmation that the transmission was successful.

46. To register the camera using the ADM, the application operator must have the necessary permissions configured on the Axon Evidence server.

11 https://www.axon.com/products/enterprise-commercial_axon-body-3

12 Full High Definition refers to a video resolution of 1920x1080, meaning images with 1920 horizontal pixels by 1080 vertical pixels.

13 The cameras are continuously collecting image and sound. When the operator presses the button to start recording, the cameras will record the images they had previously captured, provided that the capture was made within the defined time interval. The Axon Body 3 cameras allow a maximum buffer of 120 seconds, which means that if this period is not altered in the configuration, when the operator presses the button to start recording, the camera records the images it captured in the last 120 seconds before that activation. The sound from the pre-event period is only recorded if the camera is configured for that purpose.

14 https://www.axon.com/products/enterprise-commercial_axon-body-3

15 The docking station is an electronic device where the Axon Body 3 camera is docked so that the films recorded there can be downloaded, the camera can receive system updates, synchronize the internal clock, and charge the battery.

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47. The registration performed through the View XL Standalone application installed on a Windows computer is done by connecting the camera to the computer via USB cable, with the application also in contact with the Axon Evidence server through the network.

48. After registration, the cameras must be assigned to a user, through configuration on the Axon Evidence server. This assignment consists only of associating the camera's registration with the user (through the name or ID of the police officer, for example) so that all films (video and audio) recorded identify the officer to whom the camera was assigned at the time of capturing the video and audio. The cameras can change operators simply by executing the reassign on the Axon Evidence server, and care should be taken to create procedures regarding this matter that allow for the secure registration of any changes made, and that allow for subjective and objective traceability of any operation concerning the use of the cameras.

49. Furthermore, it is also clearly specified in Article 11 of the Decree-Law that "8 - The creation of different access profiles must be ensured to ensure that each police officer has strictly necessary access for the performance of their respective functions, and that "9 - The profiles to be created must be differentiated according to the functions performed, providing for each of these the respective scope and extent, differentiating permissions for viewing, processing, extraction, and conservation."

50. Also regarding access to recordings, it is only permitted for duly accredited police officers for that purpose, through the system, at a fixed workstation located in a police facility, and, in support of what has been said, "4 - All operations of access to the recordings are recorded in the system, indicating the date and time, justification, and identification of the person responsible for the intervention.". In this sense, "access" should be understood as any intervention performed in the system that has as its object, directly or indirectly, the aforementioned recordings, as well as the assignments of system manipulation profiles should be clearly defined to allow for a mechanism of checks and balances, and concentrated overlapping of operation/access/configuration/modification/deletion possibilities should not be permitted.

51. However, from consulting the manual, it cannot be concluded whether an unassigned camera is

disabled from recording. It may be understood that the camera can operate in recording mode without having been previously assigned to an officer, a situation that should be avoided, due to evident conflict with the principles referred to herein.

52. The activation/deactivation of the various device settings is done on the Axon Evidence server and transmitted to the camera at the moment it is docked to a docking station. The configurations can also be sent to the cameras if they have Wi-Fi or LTE connectivity, which is not evident from the instructional information. As stated, once configured according to the legislative restrictions for their use, the cameras should not allow configurations different from those, and technical and security mechanisms should be created to prevent these risks, especially if they can be performed remotely and at any time, and potentially without records that allow for such control, as well as risks of intrusion.

53. Among the settings that can be active/inactive, some stand out as having special relevance considering the permitted use of individual portable cameras in the context of the intervention of security forces.

54. Without additional configuration, the cameras do not record sound from the pre-event period, that is, from the 30 seconds defined legislatively immediately prior to the moment of activation of the recording. As stated above, the recording buffer of the device model in question can be up to 120 seconds, and the cameras should be configured so that this is restricted to the 30 seconds provided for in number 2 of Article 7 of Decree-Law No. 2/2023.

55. The cameras also have the capability to operate in stealth mode, where all light, sound, and vibration indicators are turned off. In the user manual of the Axon Body 3 camera, it is not possible to determine whether the stealth mode can be active during the period when the camera is recording.

****Consultation****

From the manual of older models, the description of stealth mode suggests that it may be active when the camera is recording.

56. In any case, it should be noted that the legislative intent does not foresee or authorize such use, primarily due to the application of the principle of proportionality that governs it, which translates into the fundamental balance between the rights of data subjects and the public interest underlying the purposes that authorize this processing.

57. In fact, it can be read in the explanatory memorandum of Decree-Law No. that “[...] the use of portable individual cameras must be subject to a comprehensive framework that delineates the situations in which the police officer may use this equipment, with respect for the rights, freedoms, and individual guarantees, preserving the personal dignity of those whose images are collected. For this purpose, it is essential that the activation of portable individual cameras is clearly perceptible to the different participants, which is why, under the terms of paragraph 4 of Article 10 of Law No. 95/2021, of December 29, the members of the security forces must proceed with a clear and perceptible warning of the start of recording. Through this Decree-Law, the manner in which portable cameras must be fixed to ensure their visibility to third parties is outlined, as well as the obligation for a warning or notice that must precede the start of recording.”

58. As a rule, it must always be ensured that the recorded individuals are informed that recording is taking place, which should not be confused with their consent, which is what is excluded in paragraph 8 of Article 7 of Decree-Law No.

59. Furthermore, the Legislator requires, as a rule, a verbal announcement that is clearly perceptible indicating that recording of images and sound is taking place, so, a fortiori, the cameras must also have a permanent indication that marks the moments when they are recording, in order to signal the operation, not only instantaneously but also throughout the entire duration of the recording, and in the different spaces and participants with which it may intersect, given the dynamic nature of a video and audio recording.

60. Additionally, among the minimum requirements that the devices must meet, the characteristics of “c) Indicate the start and end of recording with a sound signal;” and “d) Activate a light signal when the recording mode is active;” are expressly stated – see Article 16, paragraph 2, subparagraphs c) and d) of Decree-Law No. 2/2023.

61. In conclusion, it follows that stealth mode must also be definitively deactivated in all cameras

before their use.

62. The cameras will also allow the viewing of recorded films through the use of the Axon View app installed on a paired smartphone. Through the app, the operator can also include metadata (case ID, title, and category) in the recorded films, including the georeferenced location of the smartphone.

63. The cameras may include, in the video recording, information regarding the location of the device, through the collection of data from the GNSS/GPS sensor.

64. The need for geolocation is not mentioned as a minimum technical requirement for the cameras, being prescribed only in Article 11, paragraph 6, subparagraph f) of Decree-Law No. 2/2023, which states that the system must allow that the stored recordings include the unique and unalterable corresponding number and the date, time, and location of the recording, and must also allow for searching in the system through that field, which, in theory, will allow for the manual insertion of this information.

65. Issues related to geolocation can involve complex assessments. In the present case, for example, it would be one thing if this functionality were only active at the time of justified recording, and another if it were active even when the camera is at rest, ultimately constituting a GPS device that tracks the entire path of the police officer while on duty, potentially allowing for control of their movements while in uniform or equipped, a situation that would require a very different judgment, at least in these terms.

66. In fact, in Annex D attached to the request for an opinion, it is stated that "When the recording mode is activated, video and audio are recorded as well as the GPS coordinates, date, time, and user ID. This process will continue throughout the recording until the event is considered finished and the buffer mode is activated on the equipment."

67. From these statements, it seems to result that geolocation data is only recorded at the moment the recording is triggered. However, this Commission does not have sufficient information on this point to make a reasoned judgment on this relevant aspect, although it should always be stated that technical and security measures must be implemented that do not... permit any use of this data that is different from those stated.

68. Furthermore, it is commendable that it has also been noted that regarding the collection of images of third parties not directly related to the police intervention event, the system will allow the placement of "masks" capable of concealing from the recording elements that are not essential for obtaining evidence for potential legally authorized sharing, namely with judicial authorities, while keeping the original unaltered in the system.

69. The cameras allow entering "mute" mode, in which the camera does not record audio when in recording mode. This function should also, by definition, be turned off, as the use of these systems presupposes the recording of both image and sound.

70. Regarding the use of paired smartphone devices, these should also not be permitted, and the function should be deactivated beforehand, as they could allow access to recorded videos and audios and other functionalities provided by the app, which are not compliant, in the first place, with the provisions set forth in Articles 11, 12, and 13 of Decree-Law No. 2/2023.

71. Although lengthy, it is deemed important at this point to quote the aforementioned articles, which are incompatible with remote access, whether live or not, that would circumvent the following imperative provisions:

Article 11

Data Management and Storage System

1 - The data captured by the CPUI are managed, cataloged, and stored by a digital management and storage system, hereinafter referred to as the system.

2 - The components of processing, storage, and maintenance of the system are kept in a reserved location, with restricted access, equipped with a control mechanism and access logging.

3 - Without prejudice to other security measures, the system validates communication with the CPUI via the unique and unalterable identifier assigned by the manufacturer, transferring only the recordings from the CPUI that have been previously authorized by the highest commander of the force, and must be equipped with functionality that requires the association of the identification of the police officer to

the transferred data.

4 - Access to and transfer of data captured by the CPUI are carried out exclusively through the system, in accordance with this article.

5 - In the process of transferring data captured by the CPUI, the system must ensure its immediate encryption, using a secure cipher algorithm, and also its security, integrity, and inviolability, ensuring that the integrity verification method is available, free of charge, at any stage of the evidence custody chain.

6 - In storing the recorded data, the system must comply with the following minimum technical requirements:

- a) Not allow recordings to be deleted by users who are not duly accredited;
- b) Delete the images recorded by the CPUI as soon as they are transferred to the storage system;
- c) Ensure the storage of recorded data from all associated cameras for a minimum period of 30 days;
- d) After 30 days from the respective recording, proceed with its destruction, except in situations provided for in paragraph 2 of Article 13;
- e) When storage capacity is exhausted, it must not allow the replacement of already recorded data;
- f) Allow stored recordings to include the corresponding unique and unalterable identifier number and the date, time, and location of the recording.

7 - In accessing, viewing, and extracting recorded data, the system must comply with the following technical requirements:

- a) Allow the definition of user profiles and respective access permissions, namely for viewing, extraction, and auditing of data, as well as logging all changes;
- b) Log all operations performed on the recorded data, including their viewing and extraction, as well as changes to system settings;
- c) Allow viewing through an embedded method;
- d) Allow searching for stored recordings by unique crime process identifier number (NUIPC) or police process number, date, time, and location of the recording, and police unit or police identification number.

8 - The creation of different access profiles must be ensured to guarantee that each police officer has strictly necessary access for the performance of their respective functions.

9 - The profiles to be created must be differentiated according to the functions performed, providing for each of them the respective scope and extent, differentiating permissions for viewing, processing, extraction, and conservation.

Article 12

Security and Storage of Recordings

1 - Recordings are stored in the digital management and storage system, in an encrypted file that ensures their inviolability.

2 - The police officer who executed the recording is not allowed to delete or alter it.

3 - The transmission of recordings to the system must be carried out at the end of the service, by placing the CPUI in a suitable station for that purpose, under the supervision of a hierarchical superior or a police officer appointed for that purpose.

4 - The police officer responsible for the recording must, as quickly as possible, identify the data file, adding the associated NUIPC, when applicable, or internal registration number.

5 - Recordings are retained in the system, on an exclusive server for that purpose, for a period of 30 days.

6 - Exempt from the provisions of the previous paragraph are recordings presented as evidence in judicial proceedings or disciplinary procedures, which must be deleted as soon as communicated by the judicial authority or entity.

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decisive of the procedure that ceased the need for its preservation.

****Article 13****

****Access to recordings****

1 - Except in the situations provided for in this article, access, copying, or transmission of collected images or sound is prohibited.

2 - The recordings of collected images and sound may only be accessed in the following situations:

- a) Within the scope of a criminal procedure;
- b) Within the scope of a disciplinary procedure against a member of the security forces;
- c) To ascertain the possible existence of a disciplinary infraction, when applicable, or criminal by or against the police officer;
- d) To inspect the circumstances of police intervention, whenever this is duly determined by the highest authority of the security force.

3 - Access to the recordings is only permitted to duly accredited police officers for this purpose, through the system, at a fixed workstation located in a police facility.

4 - All operations of access to the recordings are recorded in the system, indicating the date and time, justification, and identification of the person responsible for the intervention.

72. Furthermore, it is stated in the requirements to be met by the devices (Article 16 of the Decree-Law No.), that the cameras must not allow the deletion or alteration of recorded images (f) and that they must not allow the extraction of recorded images, except through a specific workstation designated for that purpose (g).

[**underlined by us**].

73. A "watermark" should also be configured with the information provided in Article 11, No. 6, letter f).

74. The correct use of the cameras requires that the officer inserts the assigned camera into the Axon Dock station at the end of the service. This station will charge the camera's battery and send the captured footage to the server, deleting it immediately after confirming the success of the transmission.

75. The system centralizes the collection of recordings on the Axon Evidence server. The manufacturer offers two modalities for configuring this solution: use of a remote server, in a cloud solution (Axon Evidence.com²²); use of a local server (Axon Evidence Local), maintained at the facilities of the responsible entity.

76. In the manual of the Axon Body 3 camera, which accompanies the document, the Axon Commander application is mentioned as a centralized recording collection system. This application should be installed on a local machine within the infrastructure of the responsible party.

²² With access via the internet using the URL https://nome_organizacao.evidence.com (https://my.axon.com/s/article/Accessing-your-agency?language=en_US); it is a solution in the Azure cloud, owned by Microsoft (<https://partner.microsoft.com/en-us/casestudies/axonevidence#:~:text=Built%20on%20Microsoft%20Azure%2C%20A%2C%20efficient%2C%20and%20trustworthy%20way.>); <https://www.axon.com/news/secure-dems-storage>

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77. However, upon analyzing the online version of the Axon Body 3 camera manual, updated in May 2024²³, the Axon Commander application is no longer mentioned, having been replaced by Axon Evidence, which can have two distinct configurations, as referred to in the previous point.

78. Furthermore, in part C. of No. 1 of Annex D attached to the records, it is stated that "[...] [The] storage and [...] preservation of information (video and audio) is in accordance with the provisions of the National Security Office (GNS) for these cases. All information will be collected and stored digitally for the legally established period, after which the collected elements will be deleted. During this period, the information is stored on the Microsoft Azure server, within the European Union, in a cloud protected by security protocols [...] and there is effective control over the elements that have access to the data."

79. Upon reviewing the submitted documents, it is often mentioned that the recorded video and audio data from the cameras are transferred to the "[...] Evidence or Commander server/software."

80. As mentioned earlier, the most current version of the Axon Body 3 camera manual does not refer to the Axon Commander application, having replaced it with Axon Evidence, which can be implemented in two solutions: in the cloud (Axon Evidence.com) or installed locally (Axon Evidence Local), and it is not possible to determine which of the two solutions was adopted.

81. Everything seems to indicate, however, that the chosen solution for storing images on the Axon Evidence server was the cloud solution (Axon Evidence.com), to the detriment of the Axon Evidence Local version (or possibly the Axon Commander), which would allow for the same functionalities on machines managed by the entity.

82. The cloud platform where the Axon Evidence.com platform is hosted is Azure²⁴, managed by Microsoft Corporation, based in the United States of America, i.e., a third country in relation to the Union.

83. On this sensitive point, it should be noted that, on June 16, 2018, the EDPS (European Data Protection Supervisor) published the “Guidelines On The Use of Cloud Computing services by the European Institutions and Bodies,” which included a set of alerts and recommendations regarding the use of “cloud” services and their risks to data protection that, although directed at institutions, bodies, and European agencies, are also transposable here, due to the nature of the data and the subjective quality of the data.

23 In the “User guides” section at https://my.axon.com/s/axon-body-3?language=en_US

24 <https://www.axon.com/news/secure-dems-storage>; [https://partner.microsoft.com/en-us/casestudies/axonevidence#:~:text=Built%20on%20Microsoft%20Azure%2C%20A%2C%20efficient%2C%20and%20trustworthy%20way](https://partner.microsoft.com/en-us/casestudies/axonevidence#:~:text=Built%20on%20Microsoft%20Azure%2C%20A%2C%20efficient%2C%20and%20trustworthy%20way;);

https://azuremarketplace.microsoft.com/en-US/marketplace/apps/axon.axon_evidence?tab=overview
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responsible for the processing in the present case, which should be taken into account in the assessment of the use of these services.

84. Furthermore, it must also be mentioned that the EDPS, after an investigation into the use of Microsoft 365 by European institutions, issued, on March 8, 2024, a limitation order on the use of this software, precisely because it gathered evidence that the system in question is not secure²⁵.

85. Even if it is claimed that there is effective control over the data and it is mentioned in passing that the servers are located in the European Union and, therefore, subject to information under binding European rules, it cannot be overlooked that, in the case of data related to potential prevention, detection, investigation, or prosecution of criminal offenses, or national security, namely for evidentiary use, under the responsibility of the Portuguese OPC, the use of local or national servers should be considered, provided that, of course, all technical and security measures are complied with to ensure the integrity, accuracy, and confidentiality of the stored and processed data, taking into account the characteristics and sensitivity of the processing that is intended to be carried out²⁶.

86. In fact, from that document, it may be interpreted, *passim*, that circumstances may be conceived in which the third country, due to its own public legislative reasons, subsequent, emerging, controllable or not, may introduce rules that authorize access to information. Ideally, the information, the more sensitive and of national interest it is, should be under the total control of its responsible²⁷.

87. The fact that, on July 10, 2023, the European Commission, under Articles 44 and 45 of the GDPR, adopted an adequacy decision regarding the international transfer of data between the European Union and the United States of America²⁸, which includes Microsoft, does not eliminate the reasons that have just been

invoked in the terms presented here, since the risk of the possibility of transfers of this type of data must simply be sought to be eliminated. Available at https://www.edps.europa.eu/system/files/2024-03/24-03-08-edps-investigation-ec-microsoft365_en.pdf

See, in this regard, Guideline 1/2023, authored by this Commission.

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On page 39 of those “Guidelines,” it can be read:

“Therefore, in the light of the above, the EDPS recommends that - as a rule - the processing of personal data entrusted by EU institutions to CSPs (including for backup, business continuity purposes and transit, as well as locations from where remote operations are performed), and any sub-processing, takes place within the EU”

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Available at

https://commission.europa.eu/document/download/fa09cbad-dd7d-4684-ae60be03fcb0fddf_en?filename=Adequacy%20decision%20EU-US%20Data%20Privacy%20Framework_en.pdf

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88. And, the Legislator, in Article 12(5) of Decree-Law No. 2/2023 states that: “5 - The recordings are kept in the system, on a dedicated server for this purpose, for a period of 30 days” [our emphasis], which seems to align with what has just been recommended.

89. Finally, in the attached documents, it is also stated that the videos stored in the Axon Evidence system that have not been selected for evidence and that have already exceeded the 30-day period will be deleted. However, nothing is said about how this deletion is carried out, specifically, whether it results from an automatic or manual process.

90. As can also be inferred from the quoted excerpt, the retention period referred to by the Law must be scrupulously followed, creating procedural mechanisms that ensure this compliance.

IV. Conclusion

53. In the terms and with the grounds presented, the CNPD recommends:

- a) To determine the use of portable individual cameras for the purposes provided in Article 3 of Law No. 95/2021, as a concrete, necessary, and authorizing condition for the processing of the data in question, as better explained in point I. of this opinion;
- b) To ensure that the cameras are pre-configured before their use by the operators, complying with the rules provided in Decree-Law No. 2/2023, with no possibility of these configurations being altered on the devices or by the operators;
- c) To ensure that encryption on the cameras is active for the content of the disk where images and sound are recorded, not only during the collection of images and sound but also in the process of transferring the captured and stored data;

d) To ensure the subjective and objective traceability of any operation regarding the use of the cameras, as well as in relation to any access to the data, understanding "access" as any intervention performed in the system that has, directly or indirectly, the aforementioned recordings as its object, as well as clearly defining the assignments of system manipulation profiles that allow for the exercise of a checks and balances mechanism, not allowing for the overlap.

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concentrated possibilities of operation/access/configuration/modification/deletion for the same users.

e) Ensure that the cameras cannot operate in recording mode without having been previously assigned to an agent/operator.

f) Ensure the impossibility of use, control, or modification of settings through a smartphone application, or via Wi-Fi or LTE technology;

g) Ensure that the recording buffer of the device is limited to the 30 seconds stipulated in number 2 of article 7 of Decree-Law No. 2/2023.

h) Ensure that the stealth mode is not used, for the reasons better explained in 50 and subsequent sections of this opinion;

i) Ensure the implementation of technical and security measures that do not allow the use of information or geolocation when recording is not taking place;

j) Define the cameras so that the "mute" function cannot be used;

k) Configure the devices to record a "watermark" with the information provided in article 11, no. 6, paragraph f);

l) In the case of data related to the prevention, detection, investigation, or repression of criminal offenses, or national security, namely for evidentiary use, under the responsibility of the Portuguese OPC, the use of local or national servers should be considered, in any case, under the control of the data controller, and specially created for this purpose;

m) Ensure compliance with the retention period of 30 days that the legislation stipulates, creating procedural mechanisms, possibly automated, that guarantee this same compliance.

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Lisbon, August 6, 2024

Luis Barroso (Member in substitution of the President)

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